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March 4, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 799

By: Pederson and Bergstrom of
the Senate

and

Pae of the House

An Act relating to students; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-401), which relates to electronic or digital communications between students and school personnel; providing for inclusion of alternate adult in communications with certain students; providing exception; updating statutory reference; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L.
2024 (70 O.S. Supp. 2024, Section 6-401), is amended to read as
follows:

Section 6-401. A. As used in this section:

1. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software applications, and any other electronic digital means of communication; and

1 2. "School personnel" means teachers, coaches, administrators,
2 school bus drivers, or any other persons employed full-time or part-
3 time by a public school or charter school.

4 B. 1. School personnel engaging in electronic or digital
5 communication with an individual student shall include the student's
6 parent ~~or~~, guardian, or alternate adult provided for in paragraph 2
7 of this subsection in any electronic or digital communication,
8 unless such communication is on a school-approved platform and
9 related to school and academic communications.

10 2. Students who are known to be homeless children and youth as
11 defined in Section 600 of Title 10 of the Oklahoma Statutes shall,
12 in lieu of a parent or guardian, have an alternate adult included in
13 the electronic or digital communication. The alternate adult shall
14 be:

15 a. the McKinney-Vento homeless liaison of a public
16 school, or

17 b. a case manager or designated employee of a homeless
18 shelter, transitional living program, or a continuum
19 of care lead agency.

20 C. Exceptions to the requirement in subsection B of this
21 section may be made in case of an emergency, subject to subsequent
22 notification to the parent ~~or~~, guardian, or alternate adult provided
23 for in paragraph 2 of subsection B of this section. The provisions
24

1 of subsection B of this section shall not apply to the alternate
2 adult provided for in paragraph 2 of subsection B of this section.

3 D. School personnel shall make reasonable efforts to use
4 school-approved platforms, systems, or applications that allow
5 automatic inclusion of parents ~~or~~, guardians, or alternate adults
6 provided for in paragraph 2 of subsection B of this section in
7 communications with students.

8 ~~D.~~ E. Schools shall provide training, developed by the State
9 Department of Education, for school personnel on the student
10 communication requirements of this section.

11 ~~E.~~ F. Any school personnel who is reported to be in violation
12 of subsection B of this section shall be put on administrative leave
13 while the school district investigates the incident and notifies the
14 board of education. If the investigation finds that no misconduct
15 occurred, the school personnel shall be reinstated and the incident
16 shall be noted in the school personnel's employee file. If the
17 investigation finds misconduct occurred, the school personnel shall
18 be disciplined according to the school district board of education's
19 policy, up to and including termination of employment, and the
20 incident shall be reported to law enforcement pursuant to Section
21 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

22 SECTION 2. This act shall become effective July 1, 2025.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
4 March 4, 2025 - DO PASS AS AMENDED BY CS
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